

Lala Ram Batham v. U.P. Power Corporation Nigam & Ors.

Allahabad High Court · Division Bench · 12 December 2012 · WRIT - C No. 64566 of 2012 · **Writ petition disposed of with directions (grievance relegated to Clause 6.5 representation; claim not adjudicated on merits)**

HEADNOTE

A consumer's grievance about an incorrectly recorded meter reading (leading to an inflated arrears bill) is to be raised by representation before the licensee under Clause 6.5 of the U.P. Electricity Supply Code, 2005, rather than adjudicated in the writ; the licensee must decide the representation by a speaking order after personally inspecting the old meter to verify the disputed reading.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed meter reading relegated to a Clause 6.5 representation, with mandatory inspection of the removed meter

QUESTION

How should a consumer's challenge to an apparently erroneous meter reading (resulting in a large arrears bill) be resolved?

HOLDING

Under Clause 6.5 of the Code, the consumer may raise the grievance by representation before the licensee, who must decide it expeditiously by a speaking order after hearing the consumer; before deciding, the licensee must personally inspect the removed (old) meter to verify the correctness of the disputed reading. The writ court did not adjudicate the claim on merits. ¶ [unnumbered order](#)

LIMITING FACTS

The old meter's reading, recorded on removal, implied consumption of 37,835 units in about two months (1.6.2011-6.8.2011) — an implausible jump from a normal ~200-unit bimonthly consumption — resulting in an arrears demand of Rs. 2,92,445.03.

PRINCIPLE TAGS

meter-reading-dispute-clause-6.5 A disputed/implausible meter reading is to be resolved by a Clause 6.5 representation before the licensee, decided by a speaking order after inspection of the meter, rather than by the writ court on merits.

¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED METER READING AND THE RESULTING ARREARS

Expressly left undecided; relegated to the licensee's Clause 6.5 inquiry. ¶ [unnumbered order](#)